



File No.: EXP202301658

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 10, 2023. The complaint is directed against POSADA DE LLERENA, S.L. with NIF B06682454 (hereinafter, the respondent or POSADA DE LLERENA). The reasons for the complaint are as follows:

The complainant states that, on September 29, 2022, they reserved an apartment from the respondent through an accommodation platform and that, after providing their data for this purpose and having the reservation confirmed by email, the following day they received communication from one of the apartment owners requesting that they send a photograph of the ID of the guests via email or WhatsApp, as a condition to access the apartment, despite the reservation confirmation only indicating that valid IDs should be shown.

They indicate that they communicated their refusal to send those documents electronically and that they appeared at the establishment to check in on-site showing their ID, although the respondent insisted on requiring the sending of the documentation via instant messaging in order to stay in the apartment. Due to the complainant's refusal, the respondent did not allow access to the reserved and paid accommodation.

They warn that the reported events were attended to by the Civil Guard, whose assistance was requested by the complainant.

They provide documentation evidencing the reservation, a message sent by a representative of the respondent requesting the submission of identification documentation of the guests, the reservation conditions from the accommodation platform, and a complaint filed with the Civil Guard.

The information provided by the reservation platform to the client and the message received from this platform by the complainant regarding the reservation incident are detailed in the Established Facts Second and Fourth, respectively.

The details regarding the message sent to the complainant by a person from the respondent are noted in Established Fact Third.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 24, 2023, as noted in the acknowledgment of receipt in the file.

On March 29, 2023, this Agency received a written response from the respondent stating the following: POSADA DE LLERENA is a company that manages rural tourist accommodations and has an establishment consisting of 6 apartments, which is not required to have a reception on the premises.

As a tourist establishment, it is obliged to transmit daily and electronically all the data included in the travelers' report. Data that clients must provide electronically, due to the lack of reception and personnel responsible for such functions and for verifying the data provided by clients. The management related to the tourist apartments does not have a physical location in Llerena.

Regarding the complaint, it confirms that due to the repeated refusal of the client to send the documentation electronically, necessary to complete the customer registration report that must be sent to the Civil Guard, check-in was not performed, nor was the accommodation of the complainant authorized in the establishment.

Thus, at no time has it been able to misuse the data or documents of the complainant, as it never had such data.

The regulations on "Hospederías" obtained from the website of the Ministry of Interior, Civil Guard, are

attached:

“2021 ORDER INT/321/2021, of March 31, which modifies Order INT/1922/2003, of July 3, On registration books and entry reports of travelers in hospitality establishments and other similar ones, regarding the obligations of documentary registration.

2015

ORGANIC LAW 4/2015, of March 30, on the Protection of Citizen Security.

Article 25. - On obligations of documentary registration.

2003

RESOLUTION OF JULY 14, 2003, of the Secretary of State for Security

Determining the conditions and form of use of the transmission of computer files, as well as the characteristics of the supports referred to in Order INT/1922/2003, of July 3, on registration books and entry reports of travelers in hospitality establishments and other similar ones.

2003

ORDER INT/1922/2003 of July 3

On registration books and entry reports of travelers in hospitality establishments and other similar ones

2003

ORDER INT/502/2003, of February 21

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On the creation of a file for the processing of information sent by hotel establishments to the Civil Guard, in the prevention and investigation of terrorism and other serious forms of organized crime (travel part), at the General Directorate of the Civil Guard

1974

DECREE 393/1974, of August 7

On identification and registration

1959

DECREE 1513/1959, of August 18

Documents regarding the entry of travelers into hospitality establishments.

The responding party also provides a document titled “Protocol for the Protection of Personal Data,” which includes a “Customer Information Clause,” the details of which are outlined in Proven Fact Six.

THIRD: On 03/04/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On 14/07/2023, the General Subdirectorate of Data Inspection accessed information related to the responding party in “Axesor” (“Monitoring Report”). (...)

FIFTH: On 21/07/2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the responding party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified in Article 83.5.a) of the same Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.a) of the LOPDGDD.

In the opening agreement, it was determined that the sanction that could correspond, without prejudice to what results from the instruction, would be 2,000 euros (two thousand euros). It was also warned that the alleged infringements, if confirmed, could lead to the imposition of measures, according to the aforementioned Article 58.2 d) of the GDPR.

SIXTH: Once the aforementioned opening agreement was notified in accordance with the rules

established in the LPACAP, the responding party submitted a written statement of allegations in which it states the following:

1. The notification of the opening agreement during the holiday period, during which it is not possible to seek advice, is a cause of defenselessness.
2. It provides a narrative of the facts, which coincides with what is noted in the previous background, and reiterates that it could not misuse data that was not provided to it by the complainant.
3. It refers to the provisions of Articles 4 and 5 of Royal Decree 933/2021, of October 26, which establishes the obligations of documentary registration and information of individuals or legal entities engaged in hospitality and motor vehicle rental activities, which regulate the obligation of the holders of hospitality activities to collect the data of the users and the registration obligations of those subjects; and highlights that the Ministry of the Interior has enabled the platform "SES.HOSPEDAJES" on its electronic headquarters to facilitate the documentary registration and the information that must be provided.
4. "Since there is no reception at Posada de Llerena, the only way to collect this data and verify its accuracy is through the telematic reception of the documents and identification of the users, which is how it is done."
5. Regarding what is indicated in the opening agreement of the sanctioning procedure, about the processing of personal data carried out by the responding party "which is excessive as it is not necessary for the purpose for which it is collected," the written statement of allegations lists the data that, according to the responding party, is requested by the aforementioned Royal Decree 933/2021:
 - a) Name.
 - b) First surname.
 - c) Second surname.
 - d) Sex.
 - e) Identity document number.
 - f) Document support number.
 - g) Type of document (DNI, passport, TIE).
 - h) Nationality.
 - i) Date of birth.
 - j) Place of habitual residence.
 - Complete address.
 - Locality.
 - Country.
 - k) Landline phone.
 - l) Mobile phone.
 - m) Email address.
 - n) Number of travelers.
 - o) Relationship between the travelers (in the case that any is a minor)

In this regard, it states that the information provided by the DNI is basically the same up to point j), except for the name of the Father and Mother of the holder.

Therefore, it understands that personal data of the clients is not collected excessively for the purpose for which it is collected, and emphasizes the need to have access to a copy of the document to be able to verify the identity of the persons who will be staying in the establishment in the interest of state security.

SEVENTH: On 16/01/2024, a resolution proposal was made in the sense that the Director of the Spanish Agency for the Protection of Data impose a fine of 2,000 euros (two thousand euros) on POSADA DE LLERENA for the infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR, and qualified as very serious for the purposes of prescription in Article 72.1.a) of the LOPDGDD.

It was also proposed that the responding party be required to adopt the necessary measures to adapt its actions to the regulations within a period of three months.

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of personal data protection, with the scope expressed in the Legal Basis VII of the proposed resolution, and must inform the AEPD of the measures adopted within the same timeframe.

The notification of this proposed resolution was delivered to the respondent party on the same date of 01/16/2024 through the Unique Enabled Electronic Address service (DEHÚ), granting them a period to submit allegations.

EIGHTH: On 01/26/2024, a written statement of allegations to the proposed resolution was received in which POSADA DE LLERENA again requests the dismissal of the file.

In that written statement of allegations, the respondent party limits itself to declaring that its previous arguments are reproduced and reiterates that it did not collect any personal data from the complainant other than those provided with the reservation, as the complainant refused to provide their ID. Based on this, it invokes the principle of presumption of innocence and warns that it cannot be sanctioned for the commission of an infringement "in an attempt or frustration."

It warns in this regard that it does not intend to sanction for having requested those IDs, with more or less accuracy, but for having improperly used data that was never provided.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: POSADA DE LLERENA, S.L. is a company dedicated to the management of rural tourist accommodations, whose establishment has six apartments. Its accommodations are advertised on the booking platform (...) (extranet).

SECOND: On 09/29/2022, the complainant reserved an apartment from the respondent party through the platform mentioned in Proven Fact First. Upon formalizing the reservation, they received the following information from the platform:

"Inform Apartamentos Rurales Posadas de Llerena in advance of your expected arrival time... Guests must show a valid identification document."

THIRD: On 09/30/2022, the complainant received a message on their mobile terminal sent from the phone ***TELEFONO.1 with the following text:

"Good morning..., I am writing from Posada de Llerena. My name is B.B.B.. I have received your reservation with check-in for today. I need you to send me a copy of the IDs for both sides of the guests who will be staying...".

The complainant has stated that they were offered the option to send that documentation via email or WhatsApp, as a condition to access the apartment, and that they communicated their refusal to send those documents electronically.

FOURTH: The complainant has submitted a copy of the message received from the booking platform mentioned in Proven Fact First, the text of which is as follows:

"We have been talking with the establishment about the incident with your reservation. They tell us that since there is no reception, they request the documentation online. They say they offered you two channels to send the documents: via email or through the WhatsApp application. They state that they will not make any refund despite having explained to them that you intend to initiate legal actions...".

FIFTH: The complainant appeared at the establishment. The respondent party, in its written response to the transfer of the complaint, has confirmed that, due to the repeated refusal of the client to send the documentation electronically, necessary to complete the customer registration form that must be sent to the Civil Guard, check-in was not performed nor was the complainant authorized to stay at the establishment.

SIXTH: It is recorded in the proceedings, submitted by the respondent party, a document titled "Personal Data Protection Protocol." In the section "Information Clause for Clients," it states:

"What purpose do we process your personal data for?"

At Posada de Llerena, we process the information provided to us to enable the management of

accommodation services, catering, and other activities that may be offered by Posada de Llerena. By signing this document, you expressly consent to the processing of your personal data for the legitimate uses established by law/regulation. Information to the police about the guest, as well as processing for legal and tax uses.

The purpose of the file is to ensure compliance with the functions of preventing criminal acts and events that may lead to criminal liabilities.

The procedure for collecting data will be carried out in accordance with the data provided by the interested party when completing the entry and identification form that is sent to the Civil Guard.

Due to the characteristics of our establishment (6 tourist apartments), we do not have a physical reception as it is not required by the competent tourism authority of the Junta de Extremadura. The forms will be completed by the establishment's services and presented for signature in the apartment. To verify that the text included in the forms matches the data in the passport, National Identity Document, or driver's license, the identification documents must be sent electronically to the person in charge of managing the apartments.

Regarding the data of third parties (for example, family members) that the interested party may provide to Posada de Llerena for the fulfillment of the aforementioned purposes, it is guaranteed that they have informed those third parties or will inform them within three months immediately...

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subsequent to the facilitation of your data for the terms and purposes described above and having obtained or obtaining your authorization to communicate your data to Posada de Llerena.

How long do we keep your data?

The personal data provided will be retained for a period of 3 years once the relationship between the parties has ended. During this period, the data will be kept blocked.

What is the legal basis for processing your data?

The legal basis for processing your data is the consent granted by the data subject through their signature.

To whom will your data be communicated?

By signing this clause, the data subject expressly authorizes us to use such data:

1.- In our tax obligation with the Tax Agency. We declare all our relationships with clients quarterly through our income billing.

2.- Through the page Hospedería Guardia Civil, we transcribe all the data included in the travelers' report (name, surname, ID number, nationality, sex, date of birth, date of issue) for each traveler entering our establishment. Prior to configuring this report, we must have the accreditation of the data entered in the extranet (...). This is done through the online verification of these documents to ensure that the data matches.

The individuals from whom personal data is intended to be obtained or who are required to provide it will be all individuals over 16 years old who stay in any of the hospitality establishments.

3.- The booking platform (...) provides us with the clients' data, name and surname, phone number, and address. This data is incorporated into our database of the booking log."

The document ends as follows:

"Before signing this application, you must read the basic information on Data Protection presented above.

In Llerena, on _____ of _____ of _____

Name and Surname

Signed D / Mr./Ms. _____

D.N.I. _____."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Claim of defenselessness

The accused party, in its allegations regarding the opening of the sanctioning procedure, has stated that the notification of the initiation agreement during the holiday period is a cause of defenselessness, due to the difficulties in finding legal advice during that period.

The computation of deadlines in administrative procedures is regulated in Chapter II "Terms and Deadlines," of Title II of the LPACAP. These rules do not establish any month or summer period as non-working. It is only contemplated, in Article 30.7 of this Law, the approval by the General Administration of the State of a calendar of non-working days for the purpose of computing deadlines. For the year 2023, this calendar was approved by Resolution of 01/12/2022, of the Secretary of State for Public Function.

None of these rules limits the adoption and notification of the opening agreement that has led to this procedure on the dates when both acts took place.

And the difficulties in finding legal advice expressed cannot be considered a cause of defenselessness.

It is deemed appropriate to add that this procedure allows the accused party permanent access to the file and the possibility to make allegations, use the means of defense admitted by the Legal System, and submit documents at any time during its processing (Article 53 of the aforementioned LPACAP); and that they had a new hearing procedure upon notification of the proposed resolution.

III

Unfulfilled obligation. Excessive data processing

Article 5 of the GDPR refers to the principle of data minimization in paragraph 1, letter c) as follows:

"Article 5 Principles relating to processing

1. Personal data shall be:

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

This article highlights that personal data shall be adequate, relevant, and limited to the necessity for which they were collected, so that if the intended objective can be achieved without excessive data processing, that is how it should be done.

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In turn, Recital 39 of the GDPR states that: "Personal data should only be processed if the purpose of the processing cannot reasonably be fulfilled by other means." Therefore, only data that is "adequate, relevant, and not excessive in relation to the purpose for which it is obtained or processed" will be processed. The categories of data selected for processing must be strictly necessary to achieve the stated objective, and the data controller must strictly limit the collection of data to that information which is directly related to the specific purpose that is intended to be achieved.

The respondent is a company dedicated to the management and operation of rural tourist accommodations, which advertises through an external third-party booking web platform. According to the respondent, due to its characteristics, the establishment does not have a physical reception office for clients and, to complete the check-in form for travelers, it has arranged to collect from its clients, prior to occupancy, a copy of their identity document, requiring that this copy be sent to the accommodation managers electronically. The occupancy of the apartments by clients is conditioned

upon the delivery of a photocopy or scanned copy of this document.

This is stated in the information contained in the document titled "Personal Data Protection Protocol," provided by the respondent to inform clients about personal data protection and to obtain their consent for the aforementioned data processing:

"To be able to verify that the text included in the forms matches the data appearing on the passport, National Identity Document, or driving license, the identification documents must be sent electronically to the person in charge of managing the apartments."

"Prior to the configuration of said form, we must have the accreditation of the data entered in the extranet (...). This is done through the online verification of said documents in order to ensure that the data matches."

It should also be noted that the method followed by POSADA DE LLERENA to obtain the consent of its clients, through the subscription to the aforementioned "Personal Data Protection Protocol," is not a valid method as it violates the prohibition contained in Article 7.4 of the GDPR, which refers to the conditioning of the execution of a contract on the affected party consenting to the processing of their data for purposes that are not related to the maintenance, development, or control of the contractual relationship; and the reference in Recital 43 when it states that "consent is presumed not to have been freely given... when the performance of a contract, including the provision of a service, is dependent on consent, even if this is not necessary for such performance."

This occurred in the case of the claimant who, after booking accommodation from the respondent through a web platform, was requested by the latter to send a copy of their identity document and that of the other guests accompanying them electronically. Following the claimant's refusal to provide said copy, the respondent did not grant them access to the reserved apartment. In any case, it is not recorded that the claimant subscribed to the document titled.

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"Personal Data Protection Protocol", nor even that it was provided to them.

The contractual relationship that entails a stay in accommodation justifies the access by the responding party to the personal data of the individuals occupying it, as long as it is necessary for the fulfillment of the obligations arising from said stay; however, it does not justify access to all the information contained in the client's identity document and, even less, the collection and retention of a photocopy or digital copy of this document without a legal basis justifying it.

This is also not justified by compliance with the regulations governing the registration books and entry reports of travelers in hospitality establishments and similar, as well as the obligation to communicate the information contained in the registration sheets to the police authorities, which is fundamentally established by Organic Law 4/2015, of March 30, on the protection of Citizen Security, by Royal Decree 933/2021, of October 26, 2021, which establishes the obligations for documentary registration and information of individuals or legal entities engaged in hospitality and motor vehicle rental activities, and, to the extent that it does not oppose, Order INT/1922/2003, of July 3.

This regulation legitimizes the collection of personal data such as those related to the identity document number, type of document, first and last names, gender, date of birth, and country of nationality; which must be included in the "Registration Sheet" that the accommodation manager must submit to the State Security Forces and Corps. However, it does not legitimize the processing of personal data consisting of collecting the complete copy of the document, which contains other information different from what must be provided to the State Security Forces and Corps, including the names of the affected person's parents, place of birth, validity and issuance date of the document, as well as the photograph and signature of the affected person.

Compliance with this traveler registration regulation can be addressed by showing the corresponding identity documents and recording their data, without the need to send a copy of the document via email or through instant messaging. In the very reference of the announcement on the accommodation platform, it is mentioned that the identification documentation will be shown, without establishing the

obligation to send it by electronic means (“Inform Apartamentos Rurales Posadas de Llerena in advance of your expected arrival time... Guests must show a valid identity document”).

Furthermore, the repeated document called “Personal Data Protection Protocol” is designed to be delivered directly to the interested parties, who must sign it, and also includes the signature in the apartment of the entry report of travelers by the guests. Thus, nothing prevents the responding party from verifying the data in question at that moment. The repeated “Protocol” states:

“The procedure for collecting data will be carried out according to the data provided by the interested party when completing the entry and identification report that is sent to the Civil Guard...

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The parties will be extended for the services of the establishment and submitted for signature in the apartment.

Proof of this is that the claimant was received upon arrival at the apartments by representatives of the defendant; at which moment the latter insisted on the obligation to provide a copy of the identity document of the guests.

In this regard, it should be noted that, although it is true that the regulations governing tourism activities in the Autonomous Community of Extremadura do not require establishments like that of the defendant to have a reception for the administrative and assistance attention of users or clients, such regulations do require these establishments to have a responsible person who must be easily locatable.

Specifically, Article 22.1 of Decree 65/2015, of April 14, which establishes the organization and classification system for rural tourism accommodations in the Autonomous Community of Extremadura, states the following:

“1. The reception constitutes the center of permanent relationship with users for administrative, assistance, and information purposes. Rural hotels will have a reception in any case, and rural houses when they have more than ten accommodation units. In other cases, there must be a responsible person who will be easily locatable by users to assist them.”

Thus, the collection of a copy of the identity document of clients, generally required by the defendant, along with all the information contained in that document, constitutes an inappropriate processing of personal data, irrelevant and unnecessary for the specific purpose of the processing, contrary to the principles of data protection, specifically, the principle of “data minimization,” regulated in Article 5.1.c) of the GDPR.

The Agency considers that the nature of the infringement is very serious, as it affects identity documentation of the person; it affects all clients of the defendant who are in the same situation as the claimant; and the possession of the identifying documentation of clients by the defendant increases the risks to the privacy of individuals who use their accommodation services.

Consequently, in accordance with the evidence presented, the aforementioned facts constitute a violation by the defendant of the provisions of Article 5.1.c) of the GDPR, which gives rise to the application of the corrective powers that Article 58 of the aforementioned Regulation grants to the Spanish Agency for Data Protection.

POSADA DE LLERENA has stated that it cannot be sanctioned for the processing of personal data contained in the ID of the claimant, as the latter did not provide such a document. However, as has been stated, this act does not sanction the collection of inappropriate, irrelevant, and unnecessary personal data from the claimant, but rather from the clients of the entity in general. It is evidenced in the proceedings, and acknowledged by the entity POSADA DE LLERENA itself, that its procedure for providing accommodation to its guests is as expressed. This is even stated in the “Protocol for the Protection of Personal Data” that it makes available to clients.

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Typification and Qualification of the Infraction

According to the above, the respondent processes personal data of its clients that is excessive, as it is not necessary for the purpose for which it is collected.

These facts violate the provisions established in Article 5.1.c) of the GDPR, which constitutes an infraction attributable to the respondent, typified in Article 83.5, paragraph a) of the GDPR, which under the heading "General Conditions for the Imposition of Administrative Fines" states the following: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

In this regard, the LOPDGDD, in its Article 71, establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infractions."

For the purposes of the limitation period, Article 72 of the LOPDGDD indicates:

Article 72. Infractions Considered Very Serious.

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infractions that constitute a substantial violation of the articles mentioned therein are considered very serious and shall prescribe after three years, particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

V

Corrective Powers

In the event of an infraction of the provisions of the GDPR, among the corrective powers available to the Spanish Data Protection Agency, as the supervisory authority, Article 58.2 of said Regulation provides for the following:

"2 Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each specific case."

According to the provisions of Article 83.2 of the GDPR, the measure provided in the previous letter d) is compatible with the sanction consisting of an administrative fine.

VI

Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

- b) the intentionality or negligence in the infringement;
 - c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
 - d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
 - e) any previous infringement committed by the controller or processor;
 - f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
 - g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
 - j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."
- Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, "Sanctions and Corrective Measures," provides:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

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- a) The continued nature of the infringement.
- b) The connection between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In this case, considering the seriousness of the established infringement, which arises from the improper collection of copies of the identity documents of the clients of the complained party, the imposition of a fine is warranted, in addition to the adoption of measures. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Thus, the microenterprise status of the complained party is considered as a preliminary condition.

In accordance with the indicated provisions, and considering the established evidence, the balance of the circumstances contemplated, in relation to the infringement of Article 5.1.c) of the GDPR, allows for the sanction to be set at a fine of 2,000 euros (two thousand euros).

VII

Adoption of measures

Once the infringement is confirmed, it is appropriate to impose on the responsible party the adoption of adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR, and the payment of the fine does not exempt the complained party from demonstrating the regularization of their actions by adopting the required measures.

In the text of this resolution, the presumed infringements that have been committed and the facts that give rise to the violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, it is appropriate to require the

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the respondent to cease within three months the collection of copies of the identity documents of its clients that it currently carries out for the completion of the client registration of the hotel establishment, and to modify the information it provides to its clients regarding personal data protection in the same sense.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on POSADA DE LLERENA, S.L., with NIF B06682454, a fine of 2,000 euros (two thousand euros) for an infringement of article 5.1.c) of the GDPR, classified in article 83.5.a) of the GDPR, and qualified as very serious for the purposes of prescription in article 72.1.a) of the LOPDGDD.

SECOND: TO ORDER POSADA DE LLERENA, S.L., with NIF B06682454, that pursuant to article 58.2.d) of the GDPR, within three months from the date this resolution becomes final and enforceable, to prove that it has adopted the necessary measures to align its actions with the personal data protection regulations, to the extent expressed in Legal Basis VII of this resolution; of which it must inform this Agency within the same period.

THIRD: TO NOTIFY this resolution to POSADA DE LLERENA, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that it must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Mar España Martí

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